



Build. Test. Scale.

12-Month Mentorship

BTS 12-Month Mentorship Mentee Agreement

Effective Date: Upon execution by Mentee

Program Start Date: _____ *(the date the Mentee is granted access to the Program)*

This BTS 12-Month Mentorship Mentee Agreement ("Agreement") is entered into between BTS (Build. Test. Scale.) ("Company," "we," "us," or "our") and the individual identified during enrollment ("Mentee," "you," or "your") for the provision of online affiliate marketing training and mentorship services under the **12-Month Mentorship** tier ("Services"). This Agreement is a standalone agreement that applies specifically to the 12-Month Mentorship and stands on its own. By signing this Agreement, you acknowledge that you have read, understood, and agree to be bound by its terms and conditions.

1. Services & Program

The Company shall provide the Mentee with access to the BTS 12-Month Mentorship Program ("Program") for the purpose of teaching the Mentee affiliate marketing strategies, including the Build. Test. Scale. methodology. The Program will be delivered through a learning management system or similar online platform ("Platform"), and may include video tutorials, interactive exercises, live coaching sessions, and other materials.

This Agreement applies to the **12-Month Mentorship** tier. The Mentee shall pay the corresponding fee as specified in the invoice provided by the Company. Live sessions, coaching, and support may be conducted via Zoom or other video conferencing platforms. The Mentee is responsible for maintaining a reliable internet connection and a device that meets the Company's technical requirements.

The Company will make every effort to deliver Program content as scheduled but does not guarantee the frequency of classes or the availability of any specific instructor, coach, or support staff. The Company reserves the right to modify the Program schedule or content due to unforeseen circumstances, and shall not be liable for any delays.

2. Term

The 12-Month Mentorship provides access to the Program for a **fixed term of twelve (12) months**, measured from the Program Start Date (the date the Mentee is granted access to the Program). Access to the Program expires at the end of this twelve-month term unless the Mentee requests and is granted an extension as described below.

If the Mentee wishes to extend the Program beyond the twelve-month term, the Mentee shall notify the Company in writing at support@buildtestscale.com and pay the corresponding extension fee, subject to the terms of this Agreement. Any extension is subject to the Company's approval and then-current extension terms.

Once a Mentee has been granted access to the Program, there is **no option to downgrade** the Term to a shorter Term.

3. 90-Day Action-Based Refund Guarantee

The Company offers a 90-Day Action-Based Refund Guarantee ("Guarantee"). For the 12-Month Mentorship, the minimum revenue threshold that must be missed in order to trigger the Guarantee is:

☐ **12-Month Mentorship:** \$10,000 in revenue within the first 90 days of being granted access to the Program. *Initial:* _____

If the Mentee does not generate at least the applicable revenue threshold within their 90-day window, the Mentee is eligible for a full refund of the purchase price **AND** continued access to all coaches and resources until that threshold is reached, **provided that** the Mentee has met **all four** of the following criteria within the 90-day period:

1. ☐ Active and Engaged Participation in At Least 10 Live Zoom Calls.

Attendance alone is not sufficient. The Mentee must actively ask questions, implement coaching suggestions, maintain clear audio and video, and remain visible on camera to qualify. *Initial:* _____

2. ☐ Effective Utilization of the BTS Concierge. The Mentee must engage the BTS Concierge in developing marketing materials and provide demonstrable correspondence (emails or messages) showing collaborative use of the service. *Initial:* _____

3. ☐ Diligent Sharing and Daily Updating of a Profit & Loss (P&L) Spreadsheet. The Mentee must update the P&L Spreadsheet daily, notify the support team at each ad-spend milestone (support@buildtestscale.com), implement coach-recommended changes, and obtain written email verification from the coaching team that those changes have been made before advancing to the next phase.
Initial: _____

4. ☐ Achieving the Minimum Ad-Spend Threshold on Specified Traffic Sources. The Mentee must spend at least **\$10,000 USD in ad spend** within the first 90 days, using only the traffic sources taught within the Program. The Mentee must alert the support team at each milestone, receive coaching-team approval before proceeding past each milestone, and incorporate any recommended improvements before continuing.
Initial: _____

The 90-day period begins on the date the Mentee is granted access to the Program, **not** the date the Mentee first accesses the Program. No refunds shall be issued after 90 days from the start of the Program. By acknowledging this Action-Based Refund, the Mentee understands that the Company does not guarantee success and that any refund is contingent upon the Mentee's actual participation as described above.

Initial: _____

4. Payment

The Mentee shall pay the Company the agreed-upon fee for the Services. The fee may be paid in full upfront or in installments, as specified in the invoice

provided by the Company. Failure to pay any installment may result in suspension or termination of access to the Program. The Company reserves the right to change Program rates at any time, but such changes shall not apply to the Mentee's existing Program.

5. No Profit Guarantee

The Company does not guarantee that the Mentee will make a profit or achieve any specific financial outcome as a result of the Services. The Company provides education and training on online affiliate marketing, but the success of the Mentee's business is dependent on many factors, including market conditions, competition, and the Mentee's own efforts and abilities. By acknowledging this clause, the Mentee understands that their success is dependent on many factors and that the Company does not guarantee any specific financial outcome. The Company does not guarantee any specific results or outcomes from the Services, and the Mentee acknowledges that individual results may vary based on personal effort, skill, financial resources, market conditions, and external factors.

6. Intellectual Property

The Company retains all ownership and intellectual property rights in the Program and all materials provided to the Mentee as part of the Services. The Mentee may not reproduce, distribute, resell, or create derivative works based on the Program or any of the Company's materials without the prior written consent of the Company.

7. Confidentiality

The Mentee agrees to keep confidential all materials and information provided by the Company as part of the Services. The Mentee shall not disclose or share any such materials or information with any third party without the prior written consent of the Company.

8. Disclaimer of Warranty

The Company makes no warranty, express or implied, regarding the accuracy, reliability, or completeness of the Program or any other materials provided to the Mentee. The Company shall not be liable for any errors, omissions, or damages arising from or in connection with the Program or any other materials.

9. Limitation of Liability

The Company shall not be liable for any indirect, incidental, consequential, or punitive damages arising from or in connection with the Program or any other materials provided to the Mentee. The maximum liability of the Company under this Agreement shall be limited to the amount paid by the Mentee for the Services.

10. Indemnification

The Mentee agrees to indemnify and hold harmless the Company, its affiliates, and their respective officers, directors, employees, and agents from any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or in connection with the Mentee's use of the Program or any other materials provided by the Company.

11. Marketing Material Disclaimer

The Mentee acknowledges that any marketing material related to the Program is for informational and educational purposes only and does not create any guarantees, warranties, or representations about the Services. Employing the techniques, ideas, strategies, products, or services described by BTS does not guarantee similar results. Each individual's success and results may vary significantly based on personal skills, financial resources, marketing knowledge, and time investment. Historical performances or experiences shared by the Company are individual examples and not indicative of future results. The Company does not offer any "get rich quick" promise, and shall not be liable for any discrepancies between marketing material and the actual Services provided.

12. Non-Transferability

The Mentee acknowledges that enrollment in the Program is personal and non-transferable. The Mentee shall not assign or transfer any rights or obligations under this Agreement to any third party without the prior written consent of the Company.

13. Amendments to the Program

The Mentee understands that, due to the dynamic nature of online affiliate marketing, the Company reserves the right to amend, modify, or change the substance of the Program — including course content, materials, instructors, and schedule — at any time and without notice. The Mentee acknowledges that the Services are subject to change and that the Company shall not be liable for any such changes. The Company shall use reasonable efforts to provide notice of material changes through its website or other communication channels.

14. Amendments to This Agreement; Modifications and Waivers

The Company reserves the right to amend this Agreement at any time by posting the amended terms on its website or through the Platform. The Mentee's continued use of the Program after such posting constitutes acceptance of the amended terms.

No modification or waiver of any provision of this Agreement shall be effective unless in writing and signed by both parties. The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or the right to enforce it at a later time.

15. Termination

Either party may terminate this Agreement at any time upon written notice to the other party. Upon termination, the Mentee shall immediately cease using the Program and all materials provided by the Company. Termination does not entitle the Mentee to a refund, except as expressly provided in this Agreement.

16. Breach of Agreement

In the event that the Company brings any legal action or proceeding against the Mentee arising out of or relating to this Agreement, the Company shall be entitled to recover its reasonable attorneys' fees and costs incurred in connection with such action or proceeding, in addition to any other relief to which it may be entitled.

17. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without giving effect to any choice or conflict of law provision or rule. Any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the federal or state courts located in the County of Dallas, State of Texas, and each party hereby submits to the exclusive jurisdiction and venue of such courts.

18. Waiver of Class Action

The Mentee and the Company waive any right to bring any claims against each other as a plaintiff or class member in any purported class or representative action. The Mentee and the Company agree that any dispute shall be resolved on an individual basis and that neither party shall be entitled to join or consolidate claims in arbitration or court with claims brought by or against any other party.

19. Survival

The provisions of this Agreement that by their nature are intended to survive termination — including but not limited to the provisions on intellectual property, confidentiality, limitation of liability, and governing law — shall survive termination of this Agreement.

20. Entire Agreement

This Agreement constitutes the entire agreement between the Company and the Mentee with respect to the 12-Month Mentorship and supersedes all prior or

contemporaneous communications and proposals, whether oral or written, between the parties.

21. Contact

For questions regarding this Agreement, contact us at

support@buildtestscale.com.

By proceeding, you acknowledge that you have read, understand, and agree to the terms of this BTS 12-Month Mentorship Mentee Agreement.

22. Signatures

The parties have executed this Agreement as of the dates set forth below.

MENTEE

PRINTED NAME

SIGNATURE

PROGRAM START DATE

DATE

COMPANY — BTS (BUILD. TEST. SCALE.)

PRINTED NAME

TITLE

SIGNATURE

DATE

